

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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EDGAR ACUNA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
MARIO BUENO, Shield No. 11861 and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants

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Plaintiff EDGAR ACUNA, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 11, 2019, at approximately 4:00 p.m., plaintiff Edgar Acuna, while lawfully in the vicinity of 2100 Beekman Place, in Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to an assault, battery, and use of excessive force by the defendant officers when the defendant officers punched and kicked Plaintiff causing him to suffer physical injuries. Plaintiff was then unlawfully imprisoned at the 71st Precinct Police Station and Kings Central Booking for approximately 24 hours until plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released on his own recognizance. Plaintiff was denied the right to due process and a fair trial until the resisting arrest charges against plaintiff were dismissed on or about December 16, 2019. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, assaulted, battered, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff EDGAR ACUNA a resident of the state of New York.
3. NYPD POLICE OFFICER MARIO BUENO, Shield No. 11861, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER MARIO BUENO, Shield No. 11861, was at all times relevant herein, assigned to the 71st Precinct.
5. NYPD POLICE OFFICER MARIO BUENO, Shield No. 11861, is being sued in his individual and official capacity.
6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John Does #1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 7, 2020.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On October 11, 2019, at approximately 8:00 A.M., plaintiff was lawfully present in the vicinity of 2100 Beekman Place, in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested plaintiff without probable cause or legal justification.

16. Plaintiff was walking with his friend on Beekman and Flatbush Avenue when Defendant Police Officers approached them to ask about about an unrelated investigation.

17. Plaintiff's friend said she didn't want to talk to the police.

18. Defendant Police Officers then pushed Plaintiff's friend to the ground.

19. Plaintiff told the Defendant Police Officers not to push women.

20. Defendant Police Officers then grabbed Plaintiff and pushed him to the ground.

21. Defendant Police Officers then handcuffed Plaintiff's friend and put her inside their NYPD vehicle.

22. Plaintiff was standing outside of the vehicle asking the Defendant Officers why they are arresting his friend, who did nothing wrong.

23. Defendant Police Officers then grabbed Plaintiff by the legs and brought him to the ground.

24. Defendant Police Officers handcuffed Plaintiff for no legal reason.

25. Defendant Bueno then kicked Plaintiff in the face, while he was on the ground and in handcuffs, causing physical injury.

26. Defendant Police Officers proceeded to pin their knees on Plaintiff's neck, causing physical injury.

27. Plaintiff screamed out, "I can't breathe" while handcuffed and being choked on the ground.

28. Defendant Officers then picked Plaintiff up and brought him to an NYPD vehicle to transport him to the 71st Precinct.

29. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse plaintiff of committing a crime or violating the law in any way.

30. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

31. Plaintiff did not resist arrest.

32. Plaintiff was then searched by Defendant Police Officers, and no contraband was found.

33. At no point did defendants recover any drugs, weapons, or other illegal contraband from plaintiff or from a location that was in plaintiff's possession, custody or control.

34. Defendants then transported Plaintiff to the 71st Precinct police station against his will, where plaintiff was unlawfully photographed, fingerprinted and detained in a holding cell.

35. Plaintiff repeatedly asked for medical attention, but the Defendant Police Officers refused, even though Plaintiff was visibly bleeding.

36. Plaintiff was then transported from the 71st Precinct Precinct to Kings County Central Bookings.

37. The Defendant Police Officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime.

38. Specifically, the Defendant Police Officers falsely stated to the District Attorney's Office that plaintiff was engaged in Obstructing Governmental Administration.

39. On October 12, 2019, after 24 hours in unlawful custody, plaintiff was arraigned in Kings County Criminal Court, charged with crimes that the Defendant Police Officers had no basis to allege that he committed, and was released from custody.

40. When Plaintiff was released from custody, Plaintiff received treatment for his injuries, including but not limited to face, arms, back and legs.

41. Thereafter, on or about December 12, 2019 all criminal charges against Plaintiff were dismissed in their entirety.

42. Some of the Defendant Police Officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying plaintiff the right to due process and a fair trial.

43. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named Defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

44. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named Defendant Police Officers, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

46. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

52. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

53. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The illegal approach, pursuit, stop, questioning and frisk employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

55. The conduct of Defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

60. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop and search employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search Plaintiff.

63. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights Denial of Right to Fair Trial/Due Process

67. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

69. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

71. In withholding/creating false evidence against Plaintiff EDGAR ACUNA, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to

be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

72. As a result of the foregoing, Plaintiff EDGAR ACUNA, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

76. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein

77. The use of excessive force by Defendants by, amongst other things, pushing, tackling and kicking Plaintiff while he was handcuffed on the ground constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Assault

81. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

83. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

87. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner threw plaintiff to the ground, punched, and kicked with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

89. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

93. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 92 with the same force and effect as if more fully set forth at length herein.

94. The acts and conduct of the Defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

95. Defendants commenced and continued a criminal proceeding against Plaintiff.

96. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

97. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

98. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

99. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

103. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, EDGAR ACUNA. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

105. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

106. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

110. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

112. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION**Failure to Intervene**

113. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 112 with the same force and effect as if more fully set forth at length herein.

114. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

115. Defendants failed to intervene to prevent the unlawful conduct described herein.

116. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

117. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

119. The City of New York, as the employer of the Defendant Police Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

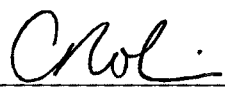
JURY DEMAND

121. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff EDGAR ACUNA demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 6, 2020

By: 
CAITLIN ROBIN AND
ASSOCIATES PLLC
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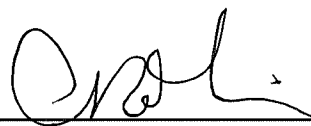
TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD POLICE OFFICER MARIO BUENO, Shield No. 11861, NYPD 71st
Precinct, 421 Empire Blvd, Brooklyn, NY 11225

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of CAITLIN ROBIN AND ASSOCIATES PLLC, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 6, 2020


CAITLIN ROBIN